

ENTITLED: “A RESOLUTION ADOPTING A COMPREHENSIVE OPEN DATA POLICY AS IS PRACTICAL.”

WHEREAS, much of the data collected by the City of Cheyenne (“City”) is stored in a manner which impedes the ability to aggregate, analyze and synthesize it to better allocate public resources; and

WHEREAS, access to public information promotes a higher level of civic engagement and allows citizens to provide valuable feedback to government officials regarding local issues; and

WHEREAS, every citizen has the right to prompt, efficient service from the government; and

WHEREAS, the thoughtful implementation of an open data policy improves the provision of services, increases transparency and access to public information, and enhances coordination and efficiencies among departments, partner organizations and citizens; and

WHEREAS, one goal of an open data policy is to proactively provide information currently sought through public records requests, thereby saving the City time and money; and

WHEREAS, in commitment to the spirit of open government, the City will consider public information to be open by default and will proactively publish data and data containing information, consistent with relevant public records law; and

WHEREAS, information technologies, including web-based and other Internet applications and services, are essential to open government, and good government generally; and

WHEREAS, by publishing standardized data, the City seeks to encourage the software community to develop software applications and tools to collect, organize, and share public record data in new and innovative ways; and

WHEREAS, the protection of privacy and confidentiality will be maintained as a paramount priority while also advancing the government’s transparency and accountability through open data; and

WHEREAS, the City adopts an administrative policy which outlines the specifics of how the policy will be implemented and maintained, a copy of which is attached hereto as Exhibit A.

NOW THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City of Cheyenne adopts a comprehensive Open Data Policy as is practical.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2019.

Marian J. Orr, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

Exhibit A

Administrative Policy Regarding Open Data

Section 1: Definitions

- a. "Data" means statistical, factual, quantitative, or qualitative information that is maintained or created by or on behalf of a City department, office, administrative unit, commission, board, advisory committee or other division of City government. This definition is inclusive of software source code developed or maintained by or on behalf of the City.
- b. "Dataset" means a named collection of related records, with the collection containing data organized or formatted in a specific or prescribed way, often in tabular form.
- c. "Open Data" means data that is available online, in an open format, with no legal encumbrances on use or reuse, and is available for all to access and download in full without fees or a requirement of registration. "Legal encumbrance" includes federal copyright protections and other, non-statutory legal limitations on how or under what conditions a dataset may be used. This definition is also inclusive of any software source code made available online ("open source software").
- d. "Open Format" means any widely accepted, nonproprietary, platform-independent, machine-readable data format, which permits automated processing of such data and facilitates analysis and search capabilities.
- e. "Policy" when referenced throughout this document means this Administrative Policy Regarding Open Data.
- f. "Protected Information" means any dataset or portion thereof to which an agency may deny access pursuant to Wyoming Statute § 16-4-201 through 16-4-205 or any other applicable law, rule or regulation.
- g. "Publishable Data" means data which is not protected or sensitive and which has been prepared for release to the public.
- h. "Sensitive Information" means any data which, if published by the City online, could raise privacy, confidentiality or security concerns or have the potential to jeopardize public health, safety or welfare to an extent that is greater than the potential public benefit of publishing that data.

Section 2: Open Data Program Goals

- a. The City commits to develop and implement practices that will allow it to:
 - 1. Proactively release all publishable City data, making it freely available in appropriately varied and useful open formats, using an open license with no restrictions on use or reuse, and fully accessible to the broadest range of users to use for varying purposes;
 - 2. Publish quality, updated data with documentation (metadata) and appropriate longevity to encourage maximum use;
 - 3. Measure the effectiveness of this Policy;
 - 4. Minimize limitations on the disclosure of public information while appropriately safeguarding protected and sensitive information; and
 - 5. Encourage the use of the City's publishable data by agencies, the public, and other partners.
- b. The development and implementation of this Policy shall be overseen by a designated

- city representative(s).
- c. The requirements of this Policy shall apply to any City department, office, administrative unit, commission, board, advisory committee or other division of City government, including the records of third-party contractors that create or acquire information, records, or data on behalf of the City.
 - d. The City's designated representative will seek appropriate funding to achieve the goals of this program.

Section 3: Implementation

- a. This Policy will be overseen by a designated city representative(s), who will work with City entities and third party's to:
 - 1. Oversee the creation of an inventory of City datasets;
 - 2. Identify potential datasets for release and periodically plan and develop new datasets;
 - 3. Develop and implement a process for determining the public benefit associated with release of potentially sensitive data;
 - 4. Develop and implement a process for prioritizing the release of datasets;
 - 5. Establish processes for publishing datasets and excluding protected and sensitive information; and
 - 6. Provide support to develop awareness and training programs to incorporate Open Data practices into City business planning processes.

Section 4: Management

- a. The following principles shall be used to manage City datasets:
 - 1. Released datasets will be as complete and up-to-date as possible while complying with legal obligations regarding the release of personal information, proprietary, or other confidential information;
 - 2. Datasets will be comprised of City source data;
 - 3. Datasets will be available to the public in a timely fashion;
 - 4. Datasets will be easily accessible and retrievable to everyone, with no requirement for registration;
 - 5. Access will be granted without charge or license to any person retrieving published City data and associated documentation files to use, copy, merge, publish, distribute, and sublicense subject only to city copyright restrictions;
 - 6. Datasets made available online should remain online;
 - 7. Ensure information at the City is managed in a way that assists in creating a culture of Open Government and information sharing; and
 - 8. Actively encourage agency and public participation by providing regular opportunities for feedback and collaboration.

Section 5: Central Online Location for Published Data

- a. The City will maintain a publicly available location on the City's website or in another suitable online location where the City's published data will be available.
- b. Published datasets shall be placed into the public domain. Dedicating datasets to the

public domain means that there are no restrictions or requirements placed on use of these datasets.

Section 6: Open Data Report and Review

- a. The designated representative(s) will publish an annual Open Data Report. The report shall include an assessment of progress towards achievement of the goals of the City's Open Data Policy.
- b. The report will include suggestions for improving City open data management processes to ensure movement towards policy goals.